

Bdk Valves Private Limited vs Prakash Hosamani on 19 January, 2026

Author: M.Nagaprasanna

Bench: M.Nagaprasanna

1

R

Reserved on : 05.01.2026

Pronounced on : 19.01.2026

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

DATED THIS THE 19TH DAY OF JANUARY, 2026

BEFORE

THE HON'BLE MR. JUSTICE M. NAGAPRASANNA

WRIT PETITION No.104683 OF 2025 (L-ID)
C/W

WRIT PETITION No.104644 OF 2025 (L-ID)
WRIT PETITION No.104649 OF 2025 (L-ID)
WRIT PETITION No.104652 OF 2025 (L-ID)
WRIT PETITION No.104655 OF 2025 (L-ID)
WRIT PETITION No.104657 OF 2025 (L-ID)
WRIT PETITION No.104686 OF 2025 (L-ID)
WRIT PETITION No.104687 OF 2025 (L-ID)
WRIT PETITION No.104748 OF 2025 (L-ID)
WRIT PETITION No.104752 OF 2025 (L-ID)
WRIT PETITION No.104753 OF 2025 (L-ID)
WRIT PETITION No.104756 OF 2025 (L-ID)
WRIT PETITION No.104771 OF 2025 (L-ID)
WRIT PETITION No.104775 OF 2025 (L-ID)
WRIT PETITION No.104824 OF 2025 (L-ID)
WRIT PETITION No.104881 OF 2025 (L-ID)
WRIT PETITION No.104883 OF 2025 (L-ID)
WRIT PETITION No.104884 OF 2025 (L-ID)
WRIT PETITION No.104885 OF 2025 (L-ID)
WRIT PETITION No.104886 OF 2025 (L-ID)
WRIT PETITION No.104887 OF 2025 (L-ID)
WRIT PETITION No.104888 OF 2025 (L-ID)
WRIT PETITION No.104889 OF 2025 (L-ID)
WRIT PETITION No.104890 OF 2025 (L-ID)
WRIT PETITION No.104897 OF 2025 (L-ID)
WRIT PETITION No.105056 OF 2025 (L-ID)

WRIT PETITION No.105057 OF 2025 (L-ID)
WRIT PETITION No.105058 OF 2025 (L-ID)
WRIT PETITION No.105062 OF 2025 (L-ID)
WRIT PETITION No.105065 OF 2025 (L-ID)
WRIT PETITION No.105067 OF 2025 (L-ID)
WRIT PETITION No.105076 OF 2025 (L-ID)
WRIT PETITION No.105077 OF 2025 (L-ID)
WRIT PETITION No.105078 OF 2025 (L-ID)
WRIT PETITION No.105081 OF 2025 (L-ID)
WRIT PETITION No.105084 OF 2025 (L-ID)
WRIT PETITION No.105085 OF 2025 (L-ID)
WRIT PETITION No.105086 OF 2025 (L-ID)
WRIT PETITION No.105087 OF 2025 (L-ID)
WRIT PETITION No.105090 OF 2025 (L-ID)
WRIT PETITION No.105108 OF 2025 (L-ID)
WRIT PETITION No.105109 OF 2025 (L-ID)
WRIT PETITION No.105110 OF 2025 (L-ID)
WRIT PETITION No.105112 OF 2025 (L-ID)
WRIT PETITION No.105113 OF 2025 (L-ID)
WRIT PETITION No.105115 OF 2025 (L-ID)
WRIT PETITION No.105118 OF 2025 (L-ID)
WRIT PETITION No.105119 OF 2025 (L-ID)
WRIT PETITION No.105154 OF 2025 (L-ID)
WRIT PETITION No.105155 OF 2025 (L-ID)
WRIT PETITION No.105168 OF 2025 (L-ID)
WRIT PETITION No.105169 OF 2025 (L-ID)
WRIT PETITION No.105171 OF 2025 (L-ID)
WRIT PETITION No.105172 OF 2025 (L-ID)
WRIT PETITION No.105370 OF 2025 (L-ID)
WRIT PETITION No.105371 OF 2025 (L-ID)
WRIT PETITION No.105372 OF 2025 (L-ID)
WRIT PETITION No.105373 OF 2025 (L-ID)
WRIT PETITION No.105377 OF 2025 (L-ID)
WRIT PETITION No.105379 OF 2025 (L-ID)
WRIT PETITION No.105507 OF 2025 (L-ID)
WRIT PETITION No.105508 OF 2025 (L-ID)
WRIT PETITION No.105509 OF 2025 (L-ID)
WRIT PETITION No.105510 OF 2025 (L-ID)
WRIT PETITION No.105511 OF 2025 (L-ID)

WRIT PETITION No.105512 OF 2025 (L-ID)
WRIT PETITION No.105513 OF 2025 (L-ID)
WRIT PETITION No.105514 OF 2025 (L-ID)
WRIT PETITION No.105516 OF 2025 (L-ID)
WRIT PETITION No.105517 OF 2025 (L-ID)
WRIT PETITION No.105519 OF 2025 (L-ID)

WRIT PETITION No.105520 OF 2025 (L-ID)
WRIT PETITION No.105521 OF 2025 (L-ID)
WRIT PETITION No.105539 OF 2025 (L-ID)
WRIT PETITION No.105541 OF 2025 (L-ID)
WRIT PETITION No.105542 OF 2025 (L-ID)
WRIT PETITION No.105544 OF 2025 (L-ID)
WRIT PETITION No.105545 OF 2025 (L-ID)
WRIT PETITION No.105546 OF 2025 (L-ID)
WRIT PETITION No.105693 OF 2025 (L-ID)
WRIT PETITION No.105749 OF 2025 (L-ID)
WRIT PETITION No.105751 OF 2025 (L-ID)
WRIT PETITION No.105752 OF 2025 (L-ID)
WRIT PETITION No.105753 OF 2025 (L-ID)
WRIT PETITION No.105754 OF 2025 (L-ID)
WRIT PETITION No.105755 OF 2025 (L-ID)
WRIT PETITION No.105756 OF 2025 (L-ID)
WRIT PETITION No.105757 OF 2025 (L-ID)
WRIT PETITION No.105758 OF 2025 (L-ID)
WRIT PETITION No.105759 OF 2025 (L-ID)
WRIT PETITION No.105760 OF 2025 (L-ID)
WRIT PETITION No.105761 OF 2025 (L-ID)
WRIT PETITION No.105762 OF 2025 (L-ID)
WRIT PETITION No.105763 OF 2025 (L-ID)
WRIT PETITION No.105765 OF 2025 (L-RES)
WRIT PETITION No.105766 OF 2025 (L-ID)
WRIT PETITION No.105794 OF 2025 (L-ID)
WRIT PETITION No.105845 OF 2025 (L-ID)
WRIT PETITION No.105848 OF 2025 (L-ID)
WRIT PETITION No.106416 OF 2025 (L-ID)
WRIT PETITION No.106418 OF 2025 (L-ID)
WRIT PETITION No.106425 OF 2025 (L-ID)
WRIT PETITION No.106427 OF 2025 (L-ID)
WRIT PETITION No.106429 OF 2025 (L-ID)

4

WRIT PETITION No.106603 OF 2025 (L-ID)
WRIT PETITION No.106632 OF 2025 (L-ID)
WRIT PETITION No.106683 OF 2025 (L-ID)
WRIT PETITION No.106684 OF 2025 (L-ID)
WRIT PETITION No.106685 OF 2025 (L-ID)
WRIT PETITION No.106686 OF 2025 (L-ID)
WRIT PETITION No.106689 OF 2025 (L-ID)
WRIT PETITION No.106692 OF 2025 (L-ID)
WRIT PETITION No.106810 OF 2025 (L-ID)
WRIT PETITION No.106866 OF 2025 (L-RES)
WRIT PETITION No.106867 OF 2025 (L-RES)
WRIT PETITION No.106868 OF 2025 (L-RES)
WRIT PETITION No.106870 OF 2025 (L-RES)
WRIT PETITION No.106871 OF 2025 (L-ID)
WRIT PETITION No.106872 OF 2025 (L-ID)
WRIT PETITION No.106910 OF 2025 (L-ID)

WRIT PETITION No.106924 OF 2025 (L-ID)
WRIT PETITION No.107080 OF 2025 (L-ID)
WRIT PETITION No.107081 OF 2025 (L-ID)
WRIT PETITION No.107082 OF 2025 (L-ID)
WRIT PETITION No.107085 OF 2025 (L-ID)
WRIT PETITION No.107086 OF 2025 (L-ID)
WRIT PETITION No.107097 OF 2025 (L-ID)
WRIT PETITION No.104758 OF 2025 (L-ID)
WRIT PETITION No.106426 OF 2025 (L-ID)
WRIT PETITION No.106828 OF 2025 (L-ID)
WRIT PETITION No.107113 OF 2025 (L-ID)
WRIT PETITION No.107436 OF 2025 (L-ID)
WRIT PETITION No.107437 OF 2025 (L-ID)
WRIT PETITION No.107442 OF 2025 (L-ID)
WRIT PETITION No.107443 OF 2025 (L-ID)
WRIT PETITION No.107451 OF 2025 (L-ID)
WRIT PETITION No.107627 OF 2025 (L-ID)
WRIT PETITION No.107629 OF 2025 (L-ID)
WRIT PETITION No.107638 OF 2025 (L-ID)
WRIT PETITION No.107640 OF 2025 (L-ID)

5

IN WRIT PETITION No.104683 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

RAJESH KALLAPPA TOTAGANTI
AGED ABOUT 52 YEARS
OCC: NIL, R/O SHALAVADI
TALUK: NAVALGUND
DISTRICT: DHARWAD - 582 208.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO A. ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT, HUBBALLI, DATED. 18TH JUNE 2025 IN KID NO. 45/2024, DISMISSING IA NO. III. A TRUE COPY IS HEREIN PRODUCED AS

6

ANNEXURE-A.

IN WRIT PETITION No.104644 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

DAVALSAB KHASIMBAR SHAIKH
AGED ABOUT 50 YEARS
NEAR KALAYAN MANTAP
NANDAGOKUL, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

7

DATED 18TH JUNE 2025 IN KID NO. 40/2024, DISMISSING I.A.NO.
III. VIDE ANNEXURE-A.

WRIT PETITION No.104649 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

NINGAPPA BASAPPA WALIKAR
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

8

DATED 18TH JUNE 2025 IN KID NO. 43/2024, DISMISSING I.A.NO.
III. HEREIN PRODUCED AS VIDE ANNEXURE-A.

WRIT PETITION No.104652 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER

THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

IMAMSAB MUTTUKHANAVAR
AGED ABOUT 50 YEARS
OCC: NIL, R/O BHANDIWAD
TALUK: HUBBALLI - 580 023
DISTRICT: DHARWAD.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

9

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.48/2024, DISMISSING
I.A.NO.III, VIDE ANNEXURE-A.
WRIT PETITION No.104655 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

GIRISH KULKARNI
OCC: NIL, R/O SHRINAGAR UNAKAL
HUBBALLI - 580 031.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

10

DATED. 18TH JUNE 2025 IN KID NO. 49/2024, DISMISSING
I.A.NO. III. A TRUE COPY HEREIN PRODUCED AS ANNEXURE-A.

WRIT PETITION No.104657 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MALLIKARJUN C.KUNTOJI
AGE: MAJOR, OCC: NIL
R/O LOHIYANAGAR, GOKUL ROAD
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT, HUBBALI DATED 18TH JUNE 2025 IN KID NO. 44/2024,

11

DISMISSING I.A.NO. III A TRUE COPY IS HEREIN PRODUCED AS ANNEXURE-A.

WRIT PETITION No.104686 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MOUNESH SHANTAPPA BADIGER
OCC: NIL, R/O GOKUL
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

12

DATED 18TH JUNE 2025 IN KID NO. 56/2024, DISMISSING IA NO.
III. VIDE ANNEXURE-A.

WRIT PETITION No.104687 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

HANUMANTAPPA HONNAPPA GURAGUNTE
AGED ABOUT 50 YEARS
OCC: NIL, R/O CHANNAPET
OLD HUBBALLI, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

13

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI DATED 18TH JUNE 2025 IN KID NO. 58/2024,
DISMISSING I.A.NO. III. VIDE ANNEXURE-A.
WRIT PETITION No.104748 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956

HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MARUTI MUDAKAPPA BOODANNAVAR,
AGED ABOUT 52 YEARS
OCC: NIL, R/O 3RD CROSS
NANDAGOKUL, HUBBALL.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

14

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO. 46/2024, DISMISSING I.A.NO.
III. VIDE ANNEXURE-A.
WRIT PETITION No.104752 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

ADVOCATES)

AND:

PRASHANT MURALIDHAR MITHARE
AGED ABOUT 46 YEARS
OCC:NIL, R/O ADHYAPAKA NAGAR
AMARAGOL, TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 032.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

15

DATED 18TH JUNE 2025 IN KID NO. 53/2024, DISMISSING IA NO.
III. VIDE ANNEXURE-A.

WRIT PETITION No.104753 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

RAVI FAKIRAPPA KARAKALI
OCC: NIL, R/O NEAR NAVADAYA SCHOOL
NANDAGOKUL, HUBBALLI - 580 021.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO. 52/2024,

16

DISMISSING I.A.NO. III. A TRUE COPY IS HEREIN PRODUCED AS ANNEXURE-A.

WRIT PETITION No.104756 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

GOVIND BHIMAPPA BADAPPANAVAR
AGED ABOUT 51 YEARS
OCC:NIL, R/O NEAR HANUMAN TEMPLE
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

17

DATED 18TH JUNE 2025 IN KID NO.47/2024, DISMISSING
I.A.NO.III VIDE ANNEXURE-A.

WRIT PETITION No.104771 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BASAVARAJ TIPPANNA KITTUR
AGED ABOUT 58 YEARS
OCC: NIL, R/O BETADUR
TALUK: HUBBALLI
DISTRICT: DHARWAD - 581 027.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI DATED. 18TH JUNE 2025 IN KID NO. 61/2024,

18

DISMISSING IA NO. III. TRUE COPY IS HEREIN IS PRODUCED AS
ANNEXURE-A.

WRIT PETITION No.104775 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:
RAVI BHIMSEN DEVAGIRI
OCC: NIL, R/O AKSHAY COLONY
UDYAM NAGAR, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT

19

DATED 18TH JUNE 2025 IN KID NO.51/2024, DISMISSING
I.A.NO.III VIDE ANNEXURE-A..

WRIT PETITION No.104824 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

KALLAPPA RUDRAPPA MASHETTI
AGED ABOUT 51 YEARS
OCC: NIL, R/O RAYANAL
HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

20

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.11/2025, DISMISSING
I.A.NO.III VIDE ANNEXURE-A.

WRIT PETITION No.104881 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

ISHWARAPPA BASAPPA MARADANNAVAR,
AGED ABOUT 37 YEARS
OCC. NIL, R/O DASANUR
TALUK: KALAGHATAGI
DHARWAD - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND

227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

21

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.109/2024, DISMISSING
I.A.NO.III, VIDE ANNEXURE-A.

WRIT PETITION No.104883 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

VENKATESH NARAYAN BUKKAPATTANAM
AGED ABOUT 49 YEARS
OCC: NIL, R/O VIJAYANAGAR
NEAR RAJ NAGAR, HUBBALLI - 580 032.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

22

DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.10/2024, DISMISSING
I.A.NO.III, VIDE ANNEXURE-A.

WRIT PETITION No.104884 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

CHANDRAPPA SOMANNA KOTI
AGED ABOUT 54 YEARS
OCC: NIL, R/O NANDAGOKUL
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
23

OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 08/2025, DISMISSING IA NO.
III VIDE ANNEXURE-A.
WRIT PETITION No.104885 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBBALLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MAHADEVAPPA T.KUNKUR
AGED ABOUT 40 YEARS
OCC: NIL, R/O MAILARLINGESH NAGAR
GOKUL ROAD HUBBALLI - 580 028.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

24

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.67/2025, DISMISSING
I.A.NO.III, VIDE ANNEXURE-A.

WRIT PETITION No.104886 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MALLAPPA GURUSIDDAPPA CHADICHAL
AGED ABOUT 52 YEARS
OCC: NIL, R/O GANGIWAL
RAYANAL, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
25

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 14/2025, DISMISSING IA NO.
III VIDE ANNEXURE-A.

WRIT PETITION No.104887 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

NAGARAJ M. S., S/O. SHIVAPPA
AGED ABOUT 37 YEARS
OCC: NIL, R/O RAJANAHALLI
DAVANAGERE - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

26

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT DATED 18TH JUNE 2025 IN KID NO.13/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

WRIT PETITION No.104888 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

PARASHURAM BADEPPA MADAR
AGED ABOUT 40 YEARS
OCC: NIL, R/O ANAND NAGAR
OLD-HUBLI, HUBBALLI
HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
27

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT DATED 18TH JUNE 2025 IN KID NO.60/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.104889 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MAHADEVAPPA DYAMANNA HARIJAN
OCC: NIL, R/O MAILARLING NAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

28

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 50/2024, DISMISSING IA NO.
III A TRUE COPY HEREIN PRODUCED AS ANNEXURE-A.

IN WRIT PETITION No.104890 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

NIJALINGAPPA G.ANGADI
AGED ABOUT 58 YEARS
OCC: NIL, R/O AT POST NOOLVI
HUBBALLI - 580 028.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

29

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 66/2025, DISMISSING IA NO.
III VIDE ANNEXURE-A.

IN WRIT PETITION No.104897 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

ADVOCATES)

AND:

MARUTI UDACHAPPA HALAGI
AGED ABOUT 39 YEARS
OCC: NIL, R/O NANDAGOKUL
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
30

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 50/2025, DISMISSING IA NO.
III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105056 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

NAGARAJ BHARAMAPPA CHAVATI
AGED ABOUT 38 YEARS
OCC: NIL, R/O NEKARNAGAR

31

GIRIYAL ROAD, HUBBALI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.70/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105057 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

32

AND:

SANTOSH S.BADIGER
AGED ABOUT 46 YEARS
OCC: NIL, R/O EWS 76
GANDHINAGAR, GOKUL ROAD
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT DATED 18TH JUNE 2025 IN KID NO.61/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105058 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
33

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

PARAMESHWAR BASAVANNEPPA BYAHATTI
AGED ABOUT 43 YEARS
OCC: NIL, R/O G.BASAVANAKOPPA
KALAGHATAGI, DHARWAD - 580 124.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO.19/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105062 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
34

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHIVALINGAPPA HANUMANT KESHAPPANAVAR
AGED ABOUT 52 YEARS
OCC: NIL, R/O PARASAPUR
HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 09/2025, DISMISSING IA NO.
III VIDE ANNEXURE-A.

IN WRIT PETITION No.105065 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT

NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
35

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

HANUMANTAPPA SHANTAPPA BYAHATTI
OCC: NIL, R/O SANDI ONI, GOKUL
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 57/2024, DISMISSING IA NO.
III VIDE ANNEXURE-A.

IN WRIT PETITION No.105067 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
36

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MANOHAR LAXMAN HEBASUR
AGED ABOUT 52 YEARS
OCC: NIL, R/O VIJAYANAGAR
HUBBALLI - 580 032.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 15/2025, DISMISSING
I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105076 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
37

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MALLIKARJUN DODDAPPA MISHRIKOTI
AGED ABOUT 53 YEARS
OCC: NIL, R/O ARJUNVIHAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND

227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT DATED. 18TH JUNE 2025 IN KID NO. 89/2024, DISMISSING IA NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105077 OF 2025
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

38

ADVOCATES)

AND:

VASANT YALLAPPA SHINDE
AGED ABOUT 38 YEARS
OCC: NIL, R/O REVADIHAL
TALUK: HUBBALLI, DHARWAD - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT DATED. 18TH JUNE 2025 IN KID NO. 56/2025, DISMISSING IA NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105078 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
39

ADVOCATES)

AND:

VENKATESH OBLESH GUTTI
AGED ABOUT 54 YEARS
OCC: NIL, R/O VIJAYANAGAR
HUBBALLI - 580 032.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 21/2025, DISMISSING IA NO.
III VIDE ANNEXURE-A.

IN WRIT PETITION No.105081 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD

HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

40

ADVOCATES)

AND:

SUNDAR SAMASON PATTI
AGED ABOUT 41 YEARS
OCC: NIL, R/O RAMLINGESH NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.35/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105084 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

41

ADVOCATES)

AND:

SHIVAYOGI P.CHousHETTY
AGED ABOUT 55 YEARS
OCC: NIL, R/O RENUKANAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.64/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105085 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,

42

ADVOCATES)

AND:

ALISAB MABUSAB AGASAR
AGED ABOUT 47 YEARS
OCC: NIL, R/O BELAGALI
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.38/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105086 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,

43

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MANJUNATH DEVENDRAPPA KONI
AGED ABOUT 37 YEARS
OCC: NIL, R/O NANDAGOUKULA ROAD
HUBBALLI - 580 021.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT, DATED 18TH JUNE 2025 IN KID NO.29/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105087 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
44

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SIDDHAROODHA
S/O MAHADEVAPPA BASARIKOPPA
AGED ABOUT 37 YEARS
OCC: NIL, R/O KURUVINAKOPPA
TALUK: KALAGHATAGI
DHARWAD - 581 204.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
DATED 18TH JUNE 2025 IN KID NO.99/2024, DISMISSING
I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105090 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

45

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

VINOD DEVENDRAPPA DANGE
AGED ABOUT 37 YEARS
OCC: NIL, R/O RAMALINGESHNAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.105/2024, DISMISSING
I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105108 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

46

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

ASHOK HANUMANTAPPA SHIGGAVI URF BARKI
AGED ABOUT 41 YEARS
OCC: NIL, R/O MISHRIKOTI
TALUK: KALAGHATAGI
HUBBALLI - 581 204.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 107/2024 DISMISSING I.A NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105109 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD

47

HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

VINODKUMAR VIRUPAXAPPA VEERAPUR
AGED ABOUT 36 YEARS
OCC: NIL, R/O BELADHADI
DHARWAD - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 108/2024, DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105110 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
48

NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BASAVARAJ SABANNA KOLUR
AGED ABOUT 46 YEARS
OCC: NIL, R/O NEKAR NAGAR
GIRIYAL, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING

OFFICER LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.1/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105112 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001
49

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

ZAHEER ABBAS MADAN
AGED ABOUT 35 YEARS
OCC: NIL R/O OLD HUBLI
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 101/2024 DISMISSING I.A. NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105113 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY

INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

50

REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MANAPPA FAKIRAPPA PARASANNAVAR
OCC: NIL, R/O RAYANAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
HUBBALLI DATED 18TH JUNE 2025 IN KID NO.55/2024,
DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105115 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT

51

INNOV8, REGAL BUILDING, 44

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

KALLANAGOUDA SANGANAGOUDA SHIVANAGOUDRA
AGED ABOUT 40 YEARS
OCC: NIL, R/O UNAKAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI DATED. 18TH JUNE 2025 IN KID NO. 104/2024
DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105118 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER

52

THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

RAVISHANKAR GURUSIDDAPPA MELINAMANI
AGED ABOUT 46 YEARS
OCC: NIL, R/O MELIN ONI
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
HUBBALLI DATED 18TH JUNE 2025 IN KID NO.62/2024,
DISMISSING I.A.NO.III, TRUE COPY IS HEREIN PRODUCED AS
ANNEXURE-A.

53

IN WRIT PETITION No.105119 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHAMBULING MALLAPPA BYAHATTI
AGED ABOUT 49 YEARS

OCC: NIL, R/O DEVALINGIKOPPA POST
G.BASAVANAKOPPA TALUK
KALAGHATAGI, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
HUBBALLI DATED 18TH JUNE 2025 IN KID NO.103/2024,
DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

54

IN WRIT PETITION No.105154 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHRIKANT KALLAPPA SULLAD
AGED ABOUT 44 YEARS
OCC: NIL, R/O RAYANAL
TALUK: HUBBALLI
DISTRICT: DHARWAD
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND

227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING

55

OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.37/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105155 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MANTESH SIDDAPPA HOSAVAKKAL
AGED ABOUT 38 YEARS
OCC: NIL, R/O HIREHONNALLI
TALUK: KALAGHATAGI
DISTRICT: DHARWAD - 580 114.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT

56

OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.32/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105168 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

PRAKASH RAMANNA MALALI
AGED ABOUT 54 YEARS
OCC: NIL, R/O BAIRIDEVARKOPPA
TALUK: HUBBALLI - 580 025.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

57

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.33/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105169 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT

INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

CHANDRASHEKHAR NAGAPPA UNAKAL
AGED ABOUT 48 YEARS
OCC: NIL, R/O GOKUL, GOKUL ROAD
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

58

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.23/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105171 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

NAGARAJ BASAPPA SULLAD
AGED ABOUT 55 YEARS
R/O VIKASNAGAR
HUBBALLI - 580 021.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

59

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.82/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105172 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

ASHOK DODDABASAPPA NANDI
AGED ABOUT 45 YEARS
OCC: NIL, R/O MAILARALINGESHNAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

60

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.59/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105370 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

JAGADEESH H.ANDEMMAVAR
AGED ABOUT 37 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

61

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING

OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.43/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105371 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MARUTI D.TATTI
AGED ABOUT 42 YEARS
OCC: NIL, R/O POST RAYANAL
TALUK: HUBBALLI, DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
62

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.69/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105372 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956

HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

REVANASIDDAPPA NINGAPPA METI
AGED ABOUT 37 YEARS
OCC: NIL, R/O RAYANAL
TALUK: HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
63

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.69/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105373 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,

ADVOCATES)

AND:

KARIYAPPA FAKIRAPPA HARIJAN
AGED ABOUT 45 YEARS
OCC: NIL, R/O MAILARLINGNAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

64

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRAITE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 98/2024, DISMISSING IA. NO. III. ANNEXURE-A.

IN WRIT PETITION No.105377 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SALIMA W/O ABDUL KHADAR JUNEDI
AGED ABOUT 51 YEARS
OCC: NIL, R/O RAMLINGESHNAGAR
HUBBALLI
DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

65

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO. 39/2025, DISMISSING I.A. NO. III. ANNEXURE-A.

IN WRIT PETITION No.105379 OF 2025:

BETWEEN:

BKD VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MAILARLING IRAPPA MUDENNAVAR
AGED ABOUT 38 YEARS
OCC: NIL, R/O RAYANAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
66

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED. 18TH JUNE 2025 IN KID NO. 92/2024, DISMISSING IA. NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105507 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BHIMAPPA GUDADAPPA MYAGERI
AGED ABOUT 43 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
67

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18th JUNE 2025 IN
KID NO.78/2024, DISMISSING I.A. NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105508 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

KAREPPA MAREPPA WALIKAR
AGED ABOUT 42 YEARS
OCC: NIL, R/O NAYAKANAHULIKATTI
TALUK: HUBBALLI, DISTRICT: DHARWAD - 577 536.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
68

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18th JUNE 2025 IN
KID NO.77/2024, DISMISSING I.A. NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105509 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BASAPPA M.GUDIHAL
AGED ABOUT 52 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

69

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18th JUNE 2025 IN
KID NO.74/2024, DISMISSING I.A. NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105510 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BHIMAPPA HANUMANTAPPA HARIJAN
AGED ABOUT 48 YEARS
OCC: NIL, R/O NANDAGOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

70

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18th JUNE 2025 IN KID NO.99/2024, DISMISSING I.A. NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105511 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

TIMMAPPA MADEV NAIK
AGED ABOUT 44 YEARS
OCC: NIL, R/O GANDHI NAGAR
GOKUL ROAD, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

71

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18th JUNE 2025 IN KID NO.40/2025, DISMISSING I.A. NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105512 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

KASHAPPA SURESHAPPA ANGADI
AGED ABOUT 38 YEARS
OCC: NIL, R/O LOHIYA NAGAR
HUBBALLI, DIST. DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

72

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.47/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105513 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHIVAPUTRAPPA SANGAPPA PARAVAPUR
AGED ABOUT 54 YEARS
OCC: NIL, R/O MAILARLINGANAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
73

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.72/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105514 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

CHANDRAYYA BASAYYA HIREMATH
AGED ABOUT 48 YEARS
OCC: NIL, R/O UNKAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

74

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.60/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105516 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BASAVARAJ SOMALINGAPPA INCHAL
AGED ABOUT 40 YEARS
OCC: NIL, R/O RAYNAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

75

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.75/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105517 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHRIDHAR GANGAPPA KUMBAR
AGED ABOUT 50 YEARS
OCC: NIL, R/O VEERANJANEYA
VIHAR GOKUL, HUBBALLI - 580 030.

... RESPONDENT

76

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.68/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105519 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SIDDAPPA DYAMAPPA HARIJAN
AGED ABOUT 42 YEARS
OCC: NIL, R/O GOKUL

77

HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.97/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105520 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956

HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

RAVI GANGAPPA KUMBAR

78

AGED ABOUT 48 YEARS
OCC: NIL, R/O VEERANJANVIHAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.66/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105521 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

79

AND:

SHIVALINGAPPA BASAPPA MARADANNAVAR
AGED ABOUT 51 YEARS
OCC: NIL, R/O G.BASAVAKOPPA
TALUK: KALAGHATAGI
DISTRICT: DHARWAD - 580 114.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.67/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105539 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,

80

SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SHAKEELAHMAD ABDULAHMAD KANKUDTHI
AGED ABOUT 55 YEARS
OCC: NIL, R/O KANKUDTHI
CHAL, GAVI ONI, HUBBALLI - 580 028.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.81/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105541 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

81

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

VIJAYA S.KERAKALAMATTI
S/O SHIVAPPA KERAKALMATTI
AGED ABOUT 52 YEARS
OCC: NIL, R/O BAIRIDEVARKOPPA
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.45/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105542 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
82

NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MANJUNATH SIDDESHWARGOUDA PATIL
AGED ABOUT 43 YEARS
OCC: NIL, R/O UDYAMNAGAR
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN

KID NO.93/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105544 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001
83

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SUBHAS HANAMANTAPPA JADAR
AGED ABOUT 38 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.85/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105545 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY

INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT

84

INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

VASUDEV NAMADEV KUNTHE
AGED ABOUT 42 YEARS
OCC: NIL, R/O KARJAGI
HAVERI - 581 112

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.52/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105546 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT

85

INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

SIJIDKHAN SULTANKHAN PATHAN
AGED ABOUT 43 YEARS
OCC: NIL, R.O.GIRANI CHAL
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.48/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105693 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956

86

HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,

ADVOCATES)

AND:

CHANDRASHEKHAR VISHNU MAGAR
AGED ABOUT 48 YEARS
OCC: NIL, R/O HANGAL CHAL
MANTUR ROAD, HUBBALLI
DHARWAD - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI DATED. 18TH JUNE 2025 IN KID NO. 55/2025,
DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.105749 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY

87

INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

ABBASALI ABDULREHAMAN KHARADI
AGED ABOUT 51 YEARS
OCC: NIL, R/O SANDI ONI
GOKULA ROAD, HUBBALLI - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 26/2025, DISMISSING I.A. NO. III VIDE ANNEXURE A.

88

IN WRIT PETITION No.105751 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT, AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

BASAVARAJ HANUMANTAPPA PUJAR
AGED ABOUT 40 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO -ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING

89

OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.86/2024, DISMISSING I.A.NO.III VIDE ANNEXURE A.

IN WRIT PETITION No.105752 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

PARASHURAM CHANDRAKANT SHIMPI
AGED ABOUT 42 YEARS
OCC: NIL, R/O UNAKAL
HUBBALLI - 580 031.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
90

OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 88/2024, DISMISSING I.A. NO. III VIDE ANNEXURE - A.

IN WRIT PETITION No.105753 OF 2025:

BETWEEN:

BKD VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

MAHAMMED AYUB DADAPEER MADAN
AGED ABOUT 35 YEARS
OCC: NIL, R/O M.V.GALLI IDLI ONI
HUBBALLI - 580 028

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

91

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.30/2025, DISMISSING I.A.NO.III VIDE ANNEXURE A.

IN WRIT PETITION No.105754 OF 2025:

BETWEEN:

BKD VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

NINGAPPA IRAPPA MYAGERI
AGED ABOUT 43 YEARS
OCC: NIL, R/O MYAGERI ONI
GOKUL, HUBBALLI - 580 030

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

92

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.76/2024, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105755 OF 2025 :

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

CHANDRASHEKHAR SOMAPPA HASABI
AGED ABOUT 56 YEARS
OCC: NIL, R/O SHIRAGUPPI,
TALUK: HUBBALLI
DHARWAD - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

93

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 57/2025, DISMISSING I.A. NO. III VIDE ANNEXURE - A.

IN WRIT PETITION No.105756 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R.AJGOANKAR,
ADVOCATES)

AND:

TULASIDAS K.SAVANT
AGED ABOUT 43 YEARS
OCC: NIL, R/O ARABAIL
TALUK: YALLAPUR
UTTAR KANNADA - 581 337.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,

94

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO.71/2025, DISMISSING I.A.NO.III .

IN WRIT PETITION No.105757 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

YALLAPPA KAREPPA HARIJAN
AGED ABOUT 45 YEARS
OCC: NIL, R/O GOKUL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
95

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO.87/2024, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105758 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

PARAMESHAPPA D.KUMARI
AGED ABOUT 46 YEARS
OCC: NIL, R/O ISHWAR NAGAR
OPP. APMC, HUBBALLI
DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
96

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.46/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105759 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MAHANTESH RAMAPPA DONI
AGED ABOUT 37 YEARS
OCC: NIL, R/O JADAR ONI
GOKUL, HUBBALLI
DISTRICT: DHARWAD - 580 030.

... RESPONDENT

97

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICE
LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO.
83/2024, DISMISSING I.A. NO. III VIDE ANNEXURE - A.

IN WRIT PETITION No.105760 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

VINAYAK TIPPANNA BADIGER
AGED ABOUT 36 YEARS
OCC: NIL, R/O LOHIYA NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
98

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 96/2024, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105761 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SEEDARLA PURUSHOTTAM JOHN
AGED ABOUT 48 YEARS
OCC: NIL, R/O MANTUR ROAD
MOULALI BLOCK, HUBBALLI

99

DHARWAD - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.58/2025, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105762 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

LAVAPPA B.UNKAL
AGED ABOUT 46 YEARS

100

OCC: NIL, R/O GOKUL
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT/S

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND

227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO. 42/2025, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105763 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

101

AND:

RAMESH A.HARIJAN
AGED ABOUT 41 YEARS
OCC: NIL, R/O AT POST RAYANAL
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN KID NO. 65/2025, DISMISSING I.A. NO. III VIDE ANNEXURE - A.

IN WRIT PETITION No.105765 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

102

AND:

MAHADEV DURGAPPA BANDIWADDAR
AGED ABOUT 44 YEARS
OCC: NIL, R/O ANAND NAGAR
HUBBALLI, DISTRICT: DHARWAD- 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 49/2025, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.105766 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

103

AND:

BHIMAPPA HANAMANTAPPA UNKAL
AGED ABOUT 51 YEARS
OCC: NIL, R/O KELAGIN ONI,
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 71/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105794 OF 2025 :

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

104

AND:

SHRIPAD NARASINHRAO NADAKARNI
AGED ABOUT 41 YEARS
OCC: NIL, R/O LOHIYA NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 07/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.105845 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
105

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

HANUMANTH NINGAPPA SULLAD
AGED ABOUT 49 YEARS
R/O RAYANAL, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND

227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.12/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.105848 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
106

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

RUDRAGOUDA T.PATIL
AGED ABOUT 48 YEARS
OCC: NIL, R/O AT POST RAYANAL
HUBBALLI - 580 028.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.68/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106416 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
107

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

KALLAPPA SHIVAPUTRAPPA ROTTI
AGED ABOUT 40 YEARS
OCC: NIL, R/O NAYAKANHULIKATTI
TALUK AND DISTRICT: DHARWAD - 580 007.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.5/2025, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.106418 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
108

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

RAMESH MAHADEVAPPA MADANBHAVI
AGED ABOUT 51 YEARS
OCC: NIL, R/O ISHWAR NAGAR OLD HUBBALLI
HUBBALLI - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.4/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106425 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
109

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MALLIKARJUN KALLAPPA KAMMAR
AGED ABOUT 48 YEARS
OCC: NIL, R/O GOKUL
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.28/2025, DISMISSING I.A.NO.III.

IN WRIT PETITION No.106427 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

110

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

UDAYKUMAR DEVENDRAPPA GANIGER
AGED ABOUT 52 YEARS
OCC: NIL, R/O UDYAMNAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.31/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106429 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD

111

HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

DYAMAPPA MUDAKAPPA SAVANUR
AGED ABOUT 38 YEARS
OCC: NIL, R/O MAILARLINGESHNAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO . ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT DATED 18TH JUNE 2025 IN KID
NO.102/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.106603 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
112

NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SHIVAJI VENU BHOJAGAR
AGED ABOUT 49 YEARS
OCC: NIL, R/O VALLABHAI NAGAR
MANTOOR ROAD, HUBBALLI
DISTRICT: DHARWAD - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
HUBBALLI, DATED 18TH JUNE 2025 IN KID NO. 22/2025,
DISMISSING I.A. NO. III.

IN WRIT PETITION No.106632 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY

INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

113

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

VINAYAK NAGAPPA PATIL
AGED ABOUT 41 YEARS
OCC: NIL, R/O MATAPATI GALLI
PATIL CHAL, HUBBALLI - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI DATED. 18TH JUNE 2025 IN
KID NO. 3/2023, DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.106683 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956

114

HAVING ITS REGISTERED OFFICE AT

INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

GANGADHAR C.BARADUR
AGED ABOUT 55 YEARS
OCC; NIL, R/O MORARJI NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.62/2025,
DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.106684 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY

115

INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

DEVAPPA YALLAPPA SUBBAYI
AGED ABOUT 42 YEARS
OCC: NIL, R/O UNKAL. HUBBALLI
DHRWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT, HUBBALLI DATED. 18TH JUNE 2025 IN
KID NO. 54/2025, DISMISSING I.A.NO. III VIDE ANNEXURE-A.

116

IN WRIT PETITION No.106685 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

GURUSIDDAPPA HANCHINAMANI

AGED ABOUT 58 YEARS
OCC: NIL, R/O RAMLINGESHNAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT,
117

HUBBALLI DATED 18TH JUDE 2025 IN KID NO.63/2024,
DISMISSING I.A. NO.III. A TRUE COPY IS HEREIN PRODUCED AS
ANNEXURE-A.

IN WRIT PETITION No.106686 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

NAZIRAHMMAD MD.HUSSAIN BALIGAR
AGED ABOUT 58 YEARS
OCC: NIL, R/O RAMLINGESH NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

118

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT, DATED. 18TH JUNE 2025 IN KID NO. 34/2025, DISMISSING IA NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.106689 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

VIRUPAXAPPA GANGAPPA UMACHAGI
AGED ABOUT 49 YEARS
OCC: NIL, R/O NANDAGOKUL
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
119

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT, HUBBALLI, DATED. 18TH JUNE 2025 IN KID NO. 106/2024, DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.106692 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

BHIMAPPA MAHADEVAPPA BHANGI
AGED ABOUT 50 YEARS
OCC: NIL, R/O KUSUGAL
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
120

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO. 2/2025, DISMISSING I.A. NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.106810 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

HANUMANTAPPA N.GULED
AGED ABOUT 44 YEARS
OCC: NIL, R/O LOHIYA NAGAR
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
121

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.41/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.106866 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

RAVIKUMAR C.BARKER
AGED ABOUT 36 YEARS
OCC: NIL, R/O AT POST SULLA
HUBBALLI, DHARWAD - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
122

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.70/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106867 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

GANAPATI LAXMAN JADHAV
AGED ABOUT 50 YEARS
OCC: NIL, R/O GIRINI CHAL
HOSUR, HUBBALLI - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
123

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.6/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106868 OF 2025:

BETWEEN:

BKD VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

CHANNAPPA MARUTHI VAVARE
AGED ABOUT 39 YEARS
OCC: NIL, R/O BENGARI
KESHWAPUR, HUBBALLI - 580 032.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
124

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.18/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106870 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

RUKMASA PANDURANG DHONGADI
AGED ABOUT 45 YEARS
OCC: NIL, R/O RAVI NAGAR
GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
125

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.36/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106871 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

CHIDANAND BASAPPA BADIGER
AGED ABOUT 37 YEARS
OCC: NIL, R/O NANDAGOKUL

126

HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.65/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106872 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

127

AND:

GURUSIDDAPPA MALLESHPA SAJJANAR
AGED ABOUT 59 YEARS
OCC: NIL, R/O OLD HUBLI
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.53/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106910 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

128

AND:

BASAVARAJ YALLAPPA KUMBAR

AGED ABOUT 54 YEARS
OCC: NIL, R/O NOOLVI
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 028.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED 18TH JUNE 2025 IN
KID NO. 79/2024, DISMISSING IA NO. III. VIDE ANNEXURE-A.

IN WRIT PETITION No.106924 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR).

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
129

SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MANJUNATH IRAPPA MUDENNAVAR
AGED ABOUT 44 YEARS
OCC: NIL, R/O RAYANAL
HUBBALLI, DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.94/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.107080 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
REPRESENTED BY ITS MANAGING DIRECTOR
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
130

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SHANKARAPPA MALLAPPA SANKANNAVAR
AGED ABOUT 42 YEARS
OCC: NIL, R/O KALIDASNAGAR
KUNDAGOL, DISTRICT: DHARWAD - 581 113.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN

KID NO.73/2024, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.107081 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
131

NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MARUTI MAILARAPPA SULLADA
AGED ABOUT 36 YEARS
OCC: NIL, R/O MAILARALING NAGAR
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO. 54/2024, DISMISSING I.A NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.107082 OF 2025
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER

THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001
132

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

GIRISH HONNAPPA KULKARNI
AGED ABOUT 56 YEARS
OCC: NIL, R/O EWS, 440
NAVANAGAR, HUBBALLI - 580 025.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI, DATED. 18TH JUNE 2025 IN KID NO. 24/2025,
DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.107085 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44

133

CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

BASAPPA HANUMATAPPA CHADICHAL
AGED ABOUT 46 YEARS
OCC: NIL, R/O RAYANAL
HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI, DATED 18TH JUNE 2025 IN KID NO. 64/2024,
DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.107086 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER

134

THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SANDESH SHANKAR MUCHANDI
AGED ABOUT 53 YEARS
OCC: NIL, R/O MUCHANDI CHAL
TABIB LAND, HUBBALLI
DHARWAD - 580 020.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
HUBBALLI, DATED. 18TH JUNE 2025 IN KID NO. 51/2025,
DISMISSING I.A.NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.107097 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED

135

A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

ASHOK BASAPPA INCHAL
AGED ABOUT 44 YEARS
OCC:NIL, R/O MANASAGIRINAGAR

GOKUL ROAD, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO -ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.84/2024, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

136

IN WRIT PETITION No.104758 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MAHADEVAPPA FAKIRAPPA YARGERI
AGED ABOUT 51 YEARS
OCC: NIL, PARASAPUR
POST. RAYANAL, HUBBALLI - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED 18TH JUNE 2025 IN KID NO.41/2024, DISMISSING
I.A.NO.III A TRUE COPY IS HEREIN PRODUCED AS ANNEXURE-A.

IN WRIT PETITION No.106426 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

MANJUNATH H.DANGARI
AGED ABOUT 57 YEARS
OCC: NIL, R/O SHETTAR LAYOUT
VIDYA NAGAR, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO . ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRISIDING OFFICER
LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN KID
NO.63/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.106828 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT

INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

IRAPPA SHADEPPA ANGADI
OCC: NIL, R/O KESHWAPUR
HUBBALLI - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE LABOUR COURT
DATED. 18TH JUNE 2025 IN KID NO. 42/2024, DISMISSING
I.A.NO. III A COPY IS HEREIN PRODUCED AS ANNEXURE-A.

139

IN WRIT PETITION No.107113 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

AMBRESH Y.HANGARAKI
AGED ABOUT 38 YEARS
OCC: NIL, R/O GIRIYAL ROAD
OLD HUBBALLI, HUBBALLI
DISTRICT: DHARWAD - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED. 18TH JUNE 2025 IN
KID NO. 44/2025, DISMISSING I.A.NO. III VIDE ANNEXURE-A.

140

IN WRIT PETITION No.107436 OF 2025:
BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SHIVASHANKAR MALLAYYA SHIVANUR
AGED ABOUT 44 YEARS
OCC: NIL, R/O BASAVANAKOPPA
TALUK: KALAGHATAGI
DISTRICT: DHARWAD - 580 114.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.25/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

141

IN WRIT PETITION No.107437 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

YALLAPPA SHANKARAPPA INGALALLI
AGED ABOUT 50 YEARS
OCC: NIL, R/O MAILARALINGESHWARA
GOKUL, HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN KID NO.27/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

142

IN WRIT PETITION No.107442 OF 2025:

BETWEEN:

M/S. BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

ISHWARAPPA SIDDAPA MASHETTI
AGED ABOUT 52 YEARS
OCC: NIL, R/O RAYANALA
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 024.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING

143

OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID NO.72/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.107443 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030

(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SANTOSH SHANKARAPPA BADAMI
AGED ABOUT 42 YEARS
OCC: NIL, R/O UNKAL
HUBBALLI - 580 031.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
144

OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.95/2024, DISMISSING I.A.NO.III VIDE ANNEXURE - A.

IN WRIT PETITION No.107451 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,

ADVOCATES)

AND:

VEERAYYA CHANNAVEERAYYA CHAVADI
AGED ABOUT 52 YEARS
OCC: NIL, R/O EKTANAGAR UNKAL
TALUK: HUBBALLI
DISTRICT: DHARWAD - 580 031.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
SMT. TANUJA HEGDE, ADVOCATE)

145

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI, DATED 18TH JUNE 2025 IN
KID N073/2025, DISMISSING I.A.NO.III, VIDE ANNEXURE-A.

IN WRIT PETITION No.107627 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

PRAKASH HOSAMANI
AGED ABOUT 44 YEARS
OCC: NIL, R/O GOKUL ROAD
HUBBALLI, DHARWAD DISTRICT
HUBBALLI - 580 030.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
146

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN KID NO.20/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.107629 OF 2025:

BETWEEN:

M/S. BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SRIKANT FAKIRSA LADAVA
AGED ABOUT 56 YEARS
OCC: NIL, R/O KOULPET KUMBAR ONI
HUBBALLI - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
147

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR

DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.76/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

IN WRIT PETITION No.107638 OF 2025:

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER
THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

SIRAJKHAN PATHAN S/O MAJIDKHAN
AGED ABOUT 53 YEARS
OCC: NIL, R/O JAMADAR CHAWL
GANESH PET, HUBBALLI - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
148

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER LABOUR COURT HUBBALLI DATED. 18TH JUNE 2025 IN
KID NO. 77/2025, DISMISSING I.A NO. III VIDE ANNEXURE-A.

IN WRIT PETITION No.107640 OF 2025

BETWEEN:

BDK VALVES PRIVATE LIMITED
A PRIVATE LIMITED COMPANY
INCORPORATED UNDER

THE PROVISIONS OF THE COMPANIES ACT, 1956
HAVING ITS REGISTERED OFFICE AT
INNOV8, REGAL BUILDING, 44
CONNAUGHT PLACE, NEW DELHI - 110 001

ALSO HAVING ITS CORPORATE OFFICE AT
NO.47/48, GOKUL ROAD, DHARWAD
HUBLI, KARNATAKA, INDIA - 580 030
(REPRESENTED BY ITS MANAGING DIRECTOR)

... PETITIONER

(BY SRI SHRIDHAR PRABHU, ADVOCATE A/W.,
SMT. GEETANJALI KAMAT AND SMT. SAAKSHI R. AJGOANKAR,
ADVOCATES)

AND:

HULAGAPPA BASAPPA KAMALDINNI
AGED ABOUT 44 YEARS
OCC: NIL, R/O GIRANI CHAL
KARWAR ROAD, HUBBALLI - 580 023.

... RESPONDENT

(BY SRI VISHWANATH HEGDE, ADVOCATE A/W.,
149

SMT. TANUJA HEGDE, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT
OF CERTIORARI, OR ANY OTHER APPROPRIATE WRIT, ORDER OR
DIRECTION TO SET ASIDE THE ORDER OF THE PRESIDING
OFFICER, LABOUR COURT, HUBBALLI DATED 18TH JUNE 2025 IN
KID NO.74/2025, DISMISSING I.A.NO.III VIDE ANNEXURE-A.

THESE WRIT PETITIONS HAVING BEEN HEARD AND
RESERVED FOR ORDERS ON 05.01.2026, COMING ON FOR
PRONOUNCEMENT THIS DAY, THE COURT MADE THE FOLLOWING:-

CORAM: THE HON'BLE MR JUSTICE M.NAGAPRASANNA

CAV ORDER

A conspectus of these petitions reveals that they arise from a
common grievance. The petitioner - BDK Valves Private Limited,
has called in question the order dated 18-06-2025, whereby the
Labour Court, Hubballi, rejected its application invoking Section 10

r/w Section 151 of the Code of Civil Procedure and Section 11 of the Industrial Disputes Act, 1947 ('the Act' for short), seeking a stay of further proceedings in the individual disputes pending before it, until final disposal of reference in Reference No.14 of 2024.

150

2. Facts adumbrated are as follows: -

2.1. The petitioner is a Company engaged in the manufacturing of industrial valves and allied products operating under the name and style of Weir BDK Valves Private Limited. It is the averment in the petition that the petitioner employs a significant work force adhering to all statutory regulations and labour laws. It also claims to have a long-standing reputation for industrial harmony committed to fair labour practice. The respondents/workmen in all these cases are different; nonetheless, are all working as employees of the petitioner. The workmen, in all these cases, come to be dismissed from service for their participation in a strike, which the petitioner terms it to be illegal.

The workmen are members of a Workers Union named VRPTK Workers Union called for a strike on 16-10-2024 leading to breakdown of conciliation efforts for the demands of the Union to be met by the petitioner. On failure of conciliation of the demands being met by the petitioner, the appropriate Government refers the dispute for adjudication in Reference No.14 of 2024 on 15-11-2024.

The strike called by the Union led to dismissal of each of the

151

workmen on 27-11-2024. Against dismissals, the workmen raised industrial disputes by filing individual applications under Section 10(4A) of the Industrial Disputes Act. The dispute initiated by each of the workmen is separately numbered.

2.2. It appears that during the pendency of the dispute talks of conciliation had failed. The petitioner/Management then files an application, in each of disputes filed by the individual workman, under Section 10 r/w 151 of the CPC and Section 11 of the Act seeking stay of proceedings until final disposal of reference in Ref.No.14 of 2024. Ref.No.14 of 2024 is with regard to strike being illegal or otherwise and rejection of demands of workmen not being met by the Management. The concerned Court by its order dated 18-06-2025 in all these cases holds that Section 10 of the CPC is not applicable to proceedings under the Act and rejects the application with costs. It is this order that is called in question by the petitioner/Management before this Court in these petitions.

2.3. A coordinate Bench of this Court owing to the submissions made by the learned counsel appearing for the

152

petitioner had stayed all further proceedings before the Labour Court until disposal of Reference No.14 of 2024. The respondents/workmen having filed applications seeking vacation of the interim order, the matter is heard and taken up for its final disposal with

the consent of learned counsel appearing for the parties.

3. Heard Sri Shridhar Prabhu along with Smt Geetanjali Kamath and Smt. Saakshi R. Ajgoankar, learned counsel appearing for the petitioner and Sri Vishwanath Hegde along with Smt. Tanuja Hegde, learned counsel appearing for the respondent.

SUBMISSIONS:

PETITIONER'S:

4. The learned counsel appearing for the petitioner would vehemently contend that the main matter in Ref.No.14 of 2024 is pending adjudication before the Court. If the Labour Court would answer the reference in favour of the workmen holding that the strike was not illegal and demands that are made by the members of Workmen Union were valid, the termination order would

153

automatically vanish. Therefore, pending Reference No.14 of 2024, it would not be necessary for the Labour Court to consider every individual dispute of the workmen who have been dismissed. It is here the learned counsel submits that the provisions of the CPC as obtaining under Section 10 would squarely become applicable, as it would be waste of time of the Labour Court to conduct trial in each of the industrial dispute raised by the individual workman. He would urge several other contentions on merits of the matter before the Labour Court. Those contentions would be considered if necessary

in the course of the order.

RESPONDENTS:

5. Contrariwise, the learned counsel Sri Vishwanath Hedge appearing for the respondents' workers in all these cases would vehemently refute the submissions in defence of the order of the Labour Court contending that Section 10 of the CPC is admittedly inapplicable to proceedings of the Labour Court. The limited application of the CPC is as obtaining in sub-section (3) of Section 11 of the Act r/w Rule 24 of the Industrial Disputes (Central) Rules, 1957. Barring this, Section 10 of the CPC cannot be invoked to

154

defeat the right of individual employees who have suffered individual orders of dismissal and have instituted individual industrial disputes under Section 10(4A) of the Act. He would further contend that it is not open to the Management to knock at the doors of this Court, on passing of an order on every interlocutory application, unless it touches upon the jurisdiction of the Labour Court. He would seek dismissal of these petitions.

6. Both the learned counsel for the petitioner and the respondents have relied on certain judgments of the Apex Court and various High Courts in support of their submissions, all of which would bear consideration qua their relevance in the case at hand.

7. In furtherance whereof, the issue that requires an answer

at the hands of this Court is, whether Section 10 of the CPC is applicable to the proceedings before Labour Court, be it an industrial reference or individual dispute by the workmen.

8. I have given my anxious consideration to the submissions made by the respective learned counsel and have perused the

155

material on record. In furtherance whereof, the pivotal question that arises for consideration is:

"Whether Code of Civil Procedure is applicable to proceedings pending before the Labour Court under the Industrial Disputes Act, 1947, so as to warrant a stay of individual industrial disputes, pending disposal of a collective reference?

CONSIDERATION:

9. Before venturing to consider the core issue in the lis, it is necessary to reiterate the peripheral facts. As observed hereinabove, the subject petitions revolve round the dispute raised by individual workmen as they have been dismissed from service on 27-11-2024 on account of grave misconduct. The misconduct arose by participation in a strike organized by the Union which the petitioner/Management terms it to be illegal. Since workmen were active members of the Union, for participation in the alleged illegal strike, the Management dismisses individual workmen. The conciliation efforts that took place prior to reference in Ref.No.14 of

2024 pertain to whether the strike was in accordance with the Act,
156

with particular reference to Sections 22 and 23, which govern the legality and prohibition of a strike. Since individual dismissal orders are passed, individual disputes are raised by the workmen invoking Section 10(4A) of the Act.

10. The Management owing to the fact that every workman has preferred individual dispute and the appropriate Government has referred the issue whether the strike was legal or otherwise in Ref.No.14 of 2024, comes up with a novel idea, of filing an application under Section 10 of the CPC which deals with arrest of the suit. Section 10 of the CPC reads as follows:

"10. Stay of suit.--No Court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties, or between parties under whom they or any of them claim litigating under the same title where such suit is pending in the same or any other Court in India having jurisdiction to grant the relief claimed, or in any Court beyond the limits of India established or continued by the Central Government and having like jurisdiction, or before the Supreme Court.

Explanation.--The pendency of a suit in a foreign court does not preclude the Courts in India from trying a suit founded on the same cause of action."

Section 10 of the CPC mandates that a suit which is a repetition between the same parties for the same relief on the same cause of
157

action must stand arrested to avoid multiplicity and conflict of orders.

11. At the outset, in the case at hand the Management is the same, dismissal orders are individually passed and every workmen exercising his right under Section 10(4A) of the Act has instituted individual dispute. Therefore, it becomes necessary to notice Section 10(4A) of the Act. It reads as follows:

"10. Reference of disputes to Boards, Courts or Tribunals:

....
"(4-A) Notwithstanding anything contained in Section 9-C and in this section, in the case of a dispute falling within the scope of Section 2-A, the individual workman concerned may, within six months from the date of communication to him of the order of discharge, dismissal, retrenchment or termination or the date of commencement of the Industrial Disputes (Karnataka Amendment) Act, 1987, whichever is later, apply, in the prescribed manner, to the Labour Court for adjudication of the dispute and the Labour Court shall dispose of such application in the same manner as a dispute referred under sub-section (1)."

A workman being aggrieved by an order of dismissal or termination is entitled to raise a dispute during the time frame prescribed under Section 10(4A) of the Act. It is the right of every workman to challenge an order that hits him hard. Therefore, close to 140 disputes sprang. Taking cue from the pendency of various cases,
158

the petitioner/ Management files an application under Section 10 of the CPC. The application and the accompanying affidavit filed in KID No.45 of 2024, read as follows:

"Application filed by the Respondent u/s 10 read with section 151 of Code of Civil Procedure and section 11 of ID Act.

Here in the advocate for the Respondent most respectfully begs to submit as under.

That for the reasons stated in the accompanying affidavit it is prayed that, the Hon'ble court be pleased to stay the proceedings in the present matter until the final disposal of Ref No. 14 of 2024 to meet the ends of justice.

Hubballi

Date: 07/05/2025

Sd/-

Advocate for the Respondent
(Shridhar Prabhu)"

....

BEFORE THE LABOUR COURT AT HUBBALLI

KID No.: 45/2024

Between

R.K. totaganti

...Claimant

And

BDK Valves Private Limited

... Respondent

Affidavit

I, Shyam Mehta, S/o Bhimal Mehta, aged 33 years, residing at 'Navjeevan', house no. 12, cross road no. 4, beside Shagun apartment, Keshwapur, Hubli - 580023, representing the Petitioner in my capacity as the Director of BDK Valves Private Limited, a Private Limited Company incorporated and registered under the Companies Act, 1956, having its registered

159

office at 47/48, opposite Hubballi Airport, Gokul Road, Hubli 580031, do hereby solemnly affirm and state as follows:

1. I am the Director of the Respondent Company and I am well conversant with the facts of the case, and hence I am swearing to this Affidavit.
2. That the workman has filed the present challenge to the dismissal order dated 27th November 2024, issued by the Respondent on account of grave misconduct.
3. That the said misconduct directly arose as a consequence of, and in furtherance of, an illegal strike organized by the union, of which the workman is an active member and participated in.
4. That the legality of the said strike is currently under adjudication before this Hon'ble Court in Ref No. 14 of 2024. The said reference pertains to the determination of whether the strike was in accordance with the provisions of the Industrial Disputes Act, 1947, particularly Sections 22 and 23, which govern the legality and prohibition of strikes.

5. The Respondent submits that the outcome of Ref No. 14/2024 will have a direct and substantial impact on the present matter, as the foundation of the dismissal order lies in the workman's involvement in the said illegal strike.

6. That the proceeding with the present case while Ref No. 14 of 2024 is pending would prejudice the Respondent Management, as the legality of the strike is a critical issue that underpins the alleged misconduct. Deciding this matter without the prior determination of the strike's legality would be contrary to the principles of natural justice and equity.

7. The Respondent further submits that allowing this case to proceed without resolving Ref No. 14 of 2024 could result in conflicting findings, which would be detrimental to the effective and efficient administration of justice.

I swear that the contents of the above affidavit are true to the best of my knowledge and belief, and nothing material has been concealed therein.

160

Wherefore the Hon'ble court be pleased to allow the accompanying application and stay the proceedings in the present matter until the final disposal of Ref No. 14 of 2024 to meet the ends of justice.

Hubballi
Date: 06/05/2025

Sd/-
Deponent

I say that the contents of the above affidavit are true and correct to the best of my knowledge and belief."

(Emphasis added)

The application is filed invoking Section 10 read with Section 151 of the Code of Civil Procedure and Section 11 of the Act. Objections are filed by the workmen to the said application. One of the objections so filed reads as follows:

"OBJECTIONS TO THE INTERIM APPLICATION DTD.
07.05.2025 FILED BY THE MANAGEMENT UNDER SECTION
10 R/W. SECTION 151 OF C.P.C.

Herein the objections on behalf of the claimant workman as under-

- 1 It is submitted that, prima facie, the application of the applicant/respondent management is false, frivolous, vexatious and not maintainable either in law or on facts of the case.
2. It is submitted that the proceedings of Labour Courts and industrial Tribunals are the summary proceedings are not like civil suits and cannot pass orders on Interim applications, which amounts to piecemeal. The Supreme Court has specifically held in D.P. Maheshwari V/s. Delhi Administration & Ors. case reported in 1984 AIR 153. The importance of holistic approach in resolving industrial disputes, rather than isolating specific

161

issues. Therefore, in view of the same, the application is not maintainable.

3. It is submitted that, before filing any application, there must be written statement and in the said written statement, they must taken up the defence/contentions. then only such applications may be filed. But in the instant case, the respondent management has not filed any written statement. Hence under the circumstances such application is not maintainable.
4. It is submitted that, admittedly under Section 11(3) of Industrial Disputes Act, 1947, R/w. Rule 24 of Industrial Disputes (Central) Rules, 1957 it is specifically mentioned regarding applicability of C.P.C., namely,
 - a) enforcing the attendance of any person and examining him on oath,
 - b) compelling the production of documents and material objects
 - c) issuing commissions for the examination of witnesses
 - d) in respect of such other matters as may be prescribed.

except above, other provisions of C.P.C not applicable to the proceedings of Labour Courts Admittedly Section 10 of C.P.C. is not applicable to the proceedings of the Labour Courts as held by the Supreme Court in a case of National Institute of Mental Health and Neuro Sciences V/s. C.Parashuram. More over Section 151 of C.P.C. is not applicable as Industrial Disputes Act, 1947 a special enactment general principles not applicable. The Labour Court can exercise its power under Section 11 of I.D. Act,

not under Section 151 C.P.C. Therefore, on this ground also the application is liable to be dismissed.

5. It is submitted that, the Reference No. 14/2024 is refereed by the Government of Karnataka under Section 10(1) (c) of Industrial Disputes Act, 1947 and said dispute is raised under Section 2(k) of Industrial Disputes Act, 1947, which is raised by the Union, The Vice

162

President, Weir BDK Workers Union, No.47/48 Gokul Road, Hubballi is the party in this case. But the present case is filed by an employee individually, challenging the illegal order of termination dtd. 27/11/2024 under Section 10(4-A) of Industrial Dispute Act, 1947. More over the claimant is not a party to the proceedings under Reference No. 14/2024. The parties, cause of action and provisions of law are different. Therefore, on this ground also the application is liable to be dismissed.

6. It is submitted that admittedly, the claimant was a permanent employee, served more than 15 years, but the management has terminated, without issuing notice, paying the compensation and conducting an enquiry, which is mandatory. Admittedly I.D.No.339/2019, Ref. No.9/2023 and many conciliation proceedings were pending while passing the order of termination, thereby the management violated the mandatory provisions of Section 33 1(b) and 33 2 (b) as held by the Supreme Court in a constitutional Bench. Decision, popularly known as Jaipur Zilla case reported in 2002 I LLJ 834 and recent decision of Supreme Court (3 Bench) in Civil Appeal No.5897 of 2021. To escape from the clutches of mandatory provisions of Industrial Disputes Act, 1947, also to protract the matter on one or the other grounds, to harass and also to bring pressure on the claimant workman, have filed this application.
7. It is submitted that due to sudden, surprise acts of the management, claimant is un-employed, age barred and no source of income and even the management has not paid the full and final settlement/pensionary benefits. Therefore, the claimant workman is literally on street.
8. It is submitted that the management has not at all giving respect to the provision of laws of the land, acting like a dictator and even the officials of the management does not have humanitarian approach.

Therefore, it is most humbly prayed that, kindly dismiss the application with heavy compensatory costs.

Hubballi

Sd/-

163

Date: 08/05/2025

Advocate for Claimant Worman."

Considering the application and the objections, the concerned Court frames an issue with regard to application of Section 10 of the CPC to the dispute and answers by the following order:

"....

6. The following points that would arise for my consideration are:

1) Whether the application filed under Section 10 R/w. Section 151 of C.P.C. and Section 11 of I.D. Act, by the respondent is maintainable?

2) What Order?

7. My answers to the above points are:

Point No.1 In the Negative.

Point No.2-As per final order for the following:

REASONS

8. Point No. 1: On perusal of the averments made in the said application and objections filed by the claimant, it is an admitted fact that, the claimant being the workman of the respondent-company and it is also an admitted fact that, the respondent-company have terminated the claimant 27.11.2024. Against the termination order passed by the respondent, the present claimant has filed the petition under Section 10(4-A) of I.D. Act. praying for, to set-aside the termination order dated 27.11.2024 passed by the respondent. The respondent have appeared through their counsel, but inspite of giving sufficient time they fails to file counter statement.

164

9. Further it is an admitted fact that, after illegal termination order passed by the respondent, the Vice President M/s. Weir BDK Valves Workers Union, 47/48, Gokul Road,

Hubballi, have filed an application before the Deputy Commissioner, Belagavi Regional Office, Belagavi, against the respondent challenging the dismissal order and the Government has passed the order and referred the dispute for adjudication before this Court against the respondent. Accordingly, as per reference order dated 15.11.2024 this Court given Ref. No. 14/2024 by issuing notice to both the parties and both parties have appeared and reference petition No. 14/2024 is pending before this Court. The specific prayer sought by the respondent is that, to stay the further proceedings of this case, till full and final settlement of Ref. No. 14/2024.

10. Admittedly, the said reference petition is filed on behalf of said Union before the Government of Karnataka, Labour Department, Bengaluru in the name and style of M/s. Weir BDK Valves Workers Union. But in the present case, the claim petition is filed under Section 10(4-A) of I.D. Act. filed under individual capacity praying for, to set aside the termination order passed by the respondent. The contention of the respondent-management is that, after reference petition filed before this Court subsequently, the present claim petition is filed and the said Ref. No. 14/2024 and the claim petition filed by the claimant are parallel proceedings and thereby only, to stay the present case till the final adjudication of reference petition and for that reason, the respondent have filed the present application under Section 10 R/w. Section 151 of C.P.C. and Section 11 of I.D. Act.

11. Whether the present application filed under Section 10 of C.P.C. is aptly applicable to the case in hand or not is to be the point for consideration. On that context, the respondent counsel vehemently argued by filing written arguments also. contending to avoid parallel proceedings and conflicting judgments. Further they have relied citation; Judgment of Hon'ble High Court of Karnataka in W.P. No. 149 of 2022, Jayapal K.M. V/s. The Management of Shakti Precision Components(India) Limited and Shakti Precision Components (India) Private Limited V/s. Jayapal K.M., MANU/KA/1312/2024, equivalent citation: 2024:KHC:6682, decided on 16th

165

February 2024. This SABOU judgment reinforces the principle that, using abusive or derogatory language in a workplace constitutes serious mis-conduct. In another case of Mahindra and Mahindra Limited V/s. MV Nervary Manu/SC/0138/2005: emphasized that, The dismissal for mis-conduct, particularly involving abusive language, is neither disproportionate nor excessive. The judgment clarified that, disciplinary measures, including termination, are justified to maintain workplace

discipline. In the said citation domestic/disciplinary enquiry conducted by the company. Whereas, in this case domestic enquiry not conducted by the respondent. Hence, the facts and circumstances of the said citation and present case are altogether different. Hence, the said citations are not applicable to case in hand.

12. In another citation relied by the counsel for respondent: The Supreme Court in the case of Shambhu Nath Goyal V/s. Bank of Baroda, 1984(1) SCR 85, held that:

"Under Section 11(3) of the Industrial Disputes Act, Labour Court/Tribunal and other authorities therein have same powers as are vested in a Civil Court under the Code of Civil Procedure when trying a suit in respect of certain matters which include enforcing the attendance of any person and examining him on oath and compelling the production of documents and material objects. It is consistently held and accepted that strict rules of evidence are not applicable to proceedings before the Labour Court/Tribunal but essentially the rules of natural justice are to be observed in such proceedings. Labour Court/Tribunals have power to call for any evidence at any stage of the proceedings if the facts and circumstances of the case demand the same to meet the ends of justice in a given situation."

13. Whereas, the counsel for claimant have submitted with respect to applicability of Section 10 of C.P.C. strictly Section 10 of C.P.C. is not applicable to present case in hand. In that context, they have relied citation reported in (2005) 25 AIC 34, between National Institute of Mental Health and Neuro Sciences V/s. C. Parameshwara, decided 13.12.2004. It is held that, "Civil

166

Procedure Code, 1908 (CPC) Section 10 Stay of suit
Applicability of - Res subjudice applicable to a suit
instituted in Civil Court and cannot apply to proceedings
of other nature instituted under any other statute." In
this citation the respondent C. Parameshwara was
appointed as senior pharmacist in the National Institute
of Mental Health and Neuro Sciences and he was
misappropriated the drugs to the extent of Rs.
1,79,668.46 and he was dismissed from service on
account of shortage of aforesaid amount and
departmental enquiry was conducted and
respondent/workman has challenged the dismissal order
before the Labour Court. The award has been passed by
the Labour Court in favour of the workman. The Labour

Court have passed the award to reinstate the workman with continuity of service and against that order the Management have preferred the W.P. No. 24348 of 2022 before the Hon'ble High Court of Karnataka and said appellant in that case was also filed application before the Hon'ble High Court under Section 10 R/w. Section 151 of C.P.C., to stay the OS No. 1732/1995 pending before the City Civil Court till disposal of the W.P. The City Civil Court have dismissed the application filed under Section 10 of C.P.C. Against the order passed by the City Civil Court, the said applicant was preferred Civil Revision Petition No. 2211/2003 before the Hon'ble High Court, to stay the suit filed before the City Civil Court in OS No. 1732/1995 which was filed by the claimant/workman and that Revision Petition was also dismissed. Against that order the said National Institute of Mental Health and Neuro Sciences preferred Civil Appeal No. 8038 of 2004 before the Hon'ble Supreme Court. The Hon'ble Supreme Court though they have allowed the said appeal clarified that, "it will neither bind the trial Court in the pending civil suit No. 1732/1995 nor the High Court in the pending writ petition No. 24348/2002. All questions on merit are expressly kept open. Nothing we have stated in this judgment will affect the rights of the parties." It is also specifically mentioned that. "Section 10 of C.P.C. is referable to a suit instituted in a Civil Court. The proceedings before the Labour Court cannot be equated with the proceedings before the Civil Court. They are not the Courts of concurrent jurisdiction." Therefore, in the

167

present case in hand, the respondent who have filed the application under Section 10 of C.P.C.. to stay the present proceedings pending before this Court on account of Ref. No. 14/2024 which is also pending before this Court for adjudication as averred in the said application is not applicable to the case in hand, because the Section 10 of C.P.C., does not apply to the case in hand.

14. In the instant case, the Ref. No. 14/2024 which is pending before this Court, in that proceedings filed by the Union (M/s. Weir BDK Valves Workers Union) Vice President is party to the proceedings against the present respondent. The present claim statement filed by the claimant under individual capacity U/s. 10(4-A) of I.D. Act, on account of illegal termination order passed by the respondent on 27.11.2024. There is no bar for filing individual claim statement. The claimant being the workman of the respondent-company. The claim made by the claimant in individual claim statement, he has prayed for, to set-aside the termination order dated 27.11.2024

and to reinstate him with continuity of service and other reliefs. In the instant case, as per the objections raised by the claimant: without filing the counter statement by taking such defence, the filing of said application is not at all maintainable. Only with an intention to protract the proceedings the said application is filed. There is no any document produced by the present respondent alleging that, the present claimant being one of the participant in the alleged strike of the said Union and it will affect the relief sought by the claimant in the present claim statement, as they are the parallel proceedings. Therefore, the question of stay of further proceedings of this case on account of Ref. No. 14/2024 which is pending before this Court is not sustainable. Hence, in the light of above observations, I constrained to hold Point No.1 in the Negative.

15. Point No. 2: For the aforesaid reasons. I proceed to pass the following:

ORDER

The application filed under Section 10 R/w. Section 151 of C.P.C. and Section 11 of I.D. Act, by the respondent i.e., I.A. No. III is hereby dismissed on cost of Rs. 10,000/-."

(Emphasis added) The issue, as observed hereinabove, is applicability of Section 10 of the CPC to these proceedings.

12. The legal position in this regard, stands crystallized by the judgment of the Apex Court in NATIONAL INSTITUTE OF MENTAL HEALTH AND NEURO SCIENCES v.

C.PARAMESHWARA¹ wherein it has been held unequivocally that Section 10 CPC is referable only to suits instituted in civil Courts.

The Apex Court holds as follows:

"....

8. The object underlying Section 10 is to prevent courts of concurrent jurisdiction from simultaneously trying two parallel suits in respect of the same matter in issue. The object underlying Section 10 is to avoid two parallel trials on the same issue by two courts and to avoid recording of conflicting findings on issues which are directly and substantially in issue in previously instituted suit. The language of Section 10 suggests that it is referable to a suit instituted in the civil court and it cannot apply to proceedings of other nature instituted under any other statute. The object of Section 10 is to prevent courts of concurrent jurisdiction from simultaneously trying two parallel suits between the (2005) 2 SCC 256 same parties in respect of the same matter in issue. The fundamental test to attract Section 10 is, whether on final decision being reached in the previous suit, such decision would operate as res judicata in the subsequent suit. Section 10 applies only in

cases where the whole of the subject-matter in both the suits is identical. The key words in Section 10 are "the matter in issue is directly and substantially in issue" in the previous instituted suit. The words "directly and substantially in issue" are used in contradistinction to the words "incidentally or collaterally in issue". Therefore, Section 10 would apply only if there is identity of the matter in issue in both the suits, meaning thereby, that the whole of the subject-matter in both the proceedings is identical.

9. In the present case, the appellant had initiated the disciplinary proceedings against the respondent herein on charges of misappropriation of drugs. In the said disciplinary proceedings, the respondent was found guilty of alleged misappropriation of drugs. On the basis of the findings arrived at in the disciplinary enquiry, the respondent herein was removed. The extent of the loss suffered by the appellant, as found in the disciplinary enquiry, was Rs 1,79,668.46. Being aggrieved by the order of dismissal, the respondent moved the Labour Court. On 29-10-2001, the Labour Court passed an award setting aside the order of removal dated 12-4-1993. Being aggrieved, the appellant instituted Writ Petition No. 24348 of 2002. The appellant has also instituted Civil Suit No. 1732 of 1995 for recovery of the loss suffered by it to the tune of Rs 1,79,668.46 with interest. Thus, as can be seen from the above facts, both the proceedings operated in different spheres. The subject-matter of the two proceedings is entirely distinct and different. The cause of action of the two proceedings is distinct and different. The cause of action in filing the said suit is the loss suffered by the appellant on account of the shortage of drugs. On the other hand, in the said Writ Petition No. 24348 of 2002, the management has challenged the award of the Labour Court granting reinstatement of the respondent.

10. As stated above, Section 10 CPC is referable to a suit instituted in a civil court. The proceedings before the Labour Court cannot be equated with the proceedings before a civil court. They are not the courts of concurrent jurisdiction. In the circumstances, Section 10 CPC has no application to the facts of this case."

(Emphasis supplied) The Apex Court, has declared in unambiguous terms, that Section 10 applies only to suits instituted in Civil Courts, and that Tribunals such as Labour Courts are not Civil Courts of concurrent jurisdiction, so as to attract the statutory mandate of Section 10 CPC. The elucidation by the Apex Court forecloses the petitioner's argument entirely. Therefore, Section 10 CPC stands excluded.

Once the principle plank of the application before the Labour Court is found to be legally untenable, the edifice erected upon it collapses. The Labour Court, therefore, cannot be faulted for rejecting the application. The Apex Court further holds that the object of Section 10 is to prevent all Courts of concurrent jurisdiction from simultaneously trying two parallel suits between the same parties in respect of the same matter in issue. Section 10 thus applies where the subject of both the suits are identical. An industrial dispute is not a suit.

13. The only exception carved out by the Apex Court for invocation of provisions of the CPC is with regard to Section 11, which deals with principles of res judicata. As the Act does not deal with the principles of res judicata, the Apex Court holds that the principle of res judicata is made applicable

to proceedings before the Labour Court. The Apex Court in fact, in plethora of cases, held that principle of res judicata as obtaining in Section 11 of the CPC is applicable even to writ proceedings, including a public interest petition. The distinction carved out by the Apex Court is in the case of CHAIRMAN AND MANAGING DIRECTOR, FERTILIZERS AND CHEMICALS TRAVANCORE LIMITED v. GENERAL SECRETARY, FERTILIZERS AND CHEMICALS TRAVANCORE EMPLOYEES ASSOCIATION². The reason rendered by the Apex Court for making it applicable is as follows:

" "

23. This Court in R.C. Tiwari case [R.C. Tiwari v. M.P. State Coop. Mktg. Federation Ltd., (1997) 5 SCC 125: 1997 SCC (L&S) 1128] ruled that the reference to the Labour Court made by the State under Section 10 of the ID Act was hit by the principle of res judicata defined under Section 11 of the Code and, therefore, the reference made to the Labour Court was barred. It was held that the issue of termination of the employee was earlier gone into by the Deputy Registrar on its (2019) 11 SCC 323 merits and the same once answered against the employee, it could not be again gone into in the reference proceedings by the Labour Court. This is what is held in para 4: (R.C. Tiwari case [R.C. Tiwari v. M.P. State Coop. Mktg. Federation Ltd., (1997) 5 SCC 125: 1997 SCC (L&S) 1128], SCC p. 127) "4. Admittedly, there is a finding recorded by the Deputy Registrar upholding the misconduct of the petitioner. That constitutes res judicata. No doubt, Section 11 CPC does not in terms apply because it is not a court, but a tribunal, constituted under the Societies Act is given special jurisdiction. So, the principle laid down thereunder mutatis mutandis squarely applies to the procedure provided under the Act. It operates as res judicata. Thus, we find that the High Court is well justified in holding that the Labour Court has no jurisdiction to decide the dispute once over and the reference itself is bad in law."

24. The second case is Pondicherry Khadi & Village Industries Board v. P. Kulothangan [Pondicherry Khadi & Village Industries Board v. P. Kulothangan, (2004) 1 SCC 68 : 2004 SCC (L&S) 32] . In this case also, this Court again examined the question as to whether the principle of res judicata including the principles of constructive res judicata applies to the industrial adjudication or not. Though this Court did not notice the law laid down in R.C. Tiwari [R.C. Tiwari v. M.P. State Coop. Mktg. Federation Ltd., (1997) 5 SCC 125: 1997 SCC (L&S) 1128], yet it took the same view, as is clear from paras 10 and 11:

(Pondicherry Khadi case [Pondicherry Khadi & Village Industries Board v. P. Kulothangan, (2004) 1 SCC 68: 2004 SCC (L&S) 32], SCC pp. 71-72) "10. In our opinion, the appellant has correctly contended that the industrial dispute pertained to the same subject-matter dealt with in the earlier writ proceedings and was barred by the principles of res judicata. It is well established that although the entire Civil Procedure Code is not applicable to industrial adjudication, the principles of res judicata laid down under Section 11 of the Code are applicable [Workmen v. Straw Board Mfg. Co. Ltd., (1974) 4 SCC 681: 1974 SCC (L&S) 406] including the principles of constructive res judicata. Thus in State of U.P. v. Nawab Hussain [State of U.P. v. Nawab Hussain, (1977) 2 SCC 806 : 1977 SCC (L&S) 362] it was held that the

dismissal of a writ petition challenging disciplinary proceedings on the ground that the charged officer had not been afforded reasonable opportunity to meet the allegations against him, operated as *res judicata* in respect of the subsequent suit in which the order of dismissal was challenged on the ground that it was incompetently passed. This Court also held: (SCC p.

808) [I]t may be that the same set of facts may give rise to two or more causes of action. If in such a case a person is allowed to choose and sue upon one cause of action at one time and to reserve the other for subsequent litigation, that would aggravate the burden of litigation. Courts have therefore treated such a course of action as an abuse of its process.

11. The principle of *res judicata* operates on the court. It is the courts which are prohibited from trying the issue which was directly and substantially in issue in the earlier proceedings between the same parties, provided the court trying the subsequent proceeding is satisfied that the earlier court was competent to dispose of the earlier proceedings and that the matter had been heard and finally decided by such court. Here the parties to the writ petition filed by the respondent in the Madras High Court and the industrial dispute were the same. The cause of action in both was the refusal of the appellant to allow the respondent to rejoin service. The Madras High Court was competent to decide the issue which it did with a reasoned order on merits and after a contested hearing. This was not a case where the earlier proceedings had been disposed of on any technical ground as was the case in *Workmen v. Cochin Port Trust* [*Workmen v. Cochin Port Trust*, (1978) 3 SCC 119: 1978 SCC (L&S) 438] and *Pujari Bai v. MadanGopal* [*Pujari Bai v. Madan Gopal*, (1989) 3 SCC 433]. The "lesser relief" of reinstatement which was the subject-matter of the industrial dispute had already been claimed by the respondent in the writ petition. This was refused by the High Court. The correctness of the decision in the writ proceedings has not been challenged by the respondent. The decision was, therefore, final. Having got an adverse order in the writ petition, it was not open to the respondent to reargue the issue before the Labour Court and the Labour Court was incompetent to entertain the dispute raised by the respondent and redetermine the matter in the face of the earlier decision of the High Court in the writ proceedings."

The Apex Court holds that Courts are prohibited from trying the issue which was directly and substantially in issue in the earlier proceedings between the same parties. I have thought it appropriate to quote the aforesaid judgment only to draw the limited applicability of CPC to the proceedings under the Act. The said judgment admittedly cannot be pressed into service in the case at hand. The issue in this petition revolves round the applicability of Section 10 of the CPC to the proceedings before the Labour Court.

In the light of the law being unequivocal as held by the Apex Court in the case of *NATIONAL INSTITUTE OF MENTAL HEALTH AND NEURO SCIENCES*, the impugned order rejecting the application therefore, calls for no interference. The other provision that is invoked is Section 11 of the Act. Section 11 vests the Labour Court and the National Tribunal to have the same powers, as are vested in a Civil Court under the Code of Civil Procedure, 1908 when trying a suit in respect of those enumerated therein only. Section 11 of the Act reads as follows:

"11. Procedure and powers of conciliation officers, Boards, Courts and Tribunals.--(1) Subject to any rules that may be made in this behalf, an arbitrator, a Board, Court, Labour Court, Tribunal or National Tribunal shall follow such procedure as the arbitrator or other authority concerned may think fit.

(2) A conciliation officer or a member of a Board, or Court or the presiding officer of a Labour Court, Tribunal or National Tribunal may for the purpose of inquiry into any existing or apprehended industrial dispute, after giving reasonable notice, enter the premises occupied by any establishment to which the dispute relates.

(3) Every Board, Court, Labour Court, Tribunal and National Tribunal shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (5 of 1908), when trying a suit, in respect of the following matters, namely--

(a) enforcing the attendance of any person and examining him on oath;

(b) compelling the production of documents and material objects;

(c) issuing commissions for the examination of witnesses;

(d) in respect of such other matters as may be prescribed;

and every inquiry or investigation by a Board, Court, Labour Court, Tribunal or National Tribunal, shall be deemed to be a judicial proceeding within the meaning of Sections 193 and 228 of the Indian Penal Code (45 of 1860).

(4) A conciliation officer may enforce the attendance of any person for the purpose of examination of such person or call for and inspect any document which he has ground for considering to be relevant to the industrial dispute or to be necessary for the purpose of verifying the implementation of any award or carrying out any other duty imposed on him under this Act, and for the aforesaid purposes, the conciliation officer shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (5 of 1908), in respect of enforcing the attendance of any person and examining him or of compelling the production of documents.

(5) A Court, Labour Court, Tribunal or National Tribunal may, if it so thinks fit, appoint one or more persons having special knowledge of the matter under consideration as assessor or assessors to advise it in the proceeding before it.

(6) All conciliation officers, members of a Board or Court and the presiding officers of a Labour Court, Tribunal or National Tribunal shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code (45 of 1860).

(7) Subject to any rules made under this Act, the costs of, and incidental to, any proceeding before a Labour Court, Tribunal or National Tribunal shall be in the discretion of that Labour Court,

Tribunal or National Tribunal and the Labour Court, Tribunal or National Tribunal, as the case may be, shall have full power to determine by and to whom and to what extent and subject to what conditions, if any, such costs are to be paid, and to give all necessary directions for the purposes aforesaid and such costs may, on application made to the appropriate Government by the person entitled, be recovered by that Government in the same manner as an arrear of land revenue.

(8) Every Labour Court, Tribunal or National Tribunal shall be deemed to be a Civil Court for the purposes of Sections 345, 346 and 348 of the Code of Criminal Procedure, 1973 (2 of 1974).

(9) Every award made, order issued or settlement arrived at by or before Labour Court or Tribunal or National Tribunal shall be executed in accordance with the procedure laid down for execution of orders and decree of a civil court under Order 21 of the Code of Civil Procedure, 1908 (5 of 1908).

(10) The Labour Court or Tribunal or National Tribunal, as the case may be, shall transmit any award, order or settlement to a civil court having jurisdiction and such civil court shall executed the award, order or settlement as if it were a decree passed by it."

Section 11 thus, has a limited application of the provisions of the CPC, for what is found as clauses (a) to (d). It can, by no stretch of imagination, lead to filing of an application under Section 10 of the CPC, as the Apex Court clearly holds that the Tribunal is not a Civil Court, a civil suit is not an industrial dispute pending before a Labour Court, the Courts are different, the jurisdictions are different. Therefore, invocation of Section 11 even, will not save the application filed before the concerned Court. On this ground as well, the impugned order rejecting the application calls for no interference.

14. Additionally, it is necessary to notice that industrial adjudication is founded upon the salutary objective of speedy and efficacious resolution of disputes. The Apex Court has repeated cautioned Courts against entertaining challenges to interlocutory orders, which have the effect of stalling proceedings and defeating the legislative purpose of swift industrial justice, resulting in grave prejudice to the cause of the workman. The Apex Court in *D.P. MAHESHWARI v. DELHI ADMINISTRATION*³ wherein the Apex Court has held as follows:

"It was just the other day [See (1983) 4 SCC 214] that we were bemoaning the unbecoming devices adopted by certain employers to avoid decision of industrial disputes on merits. We noticed how they would raise various preliminary objections, invite decision on those objections in the first instance, carry the matter to the High Court under Article 226 of the Constitution and to this Court under Article 136 of the Constitution and delay a decision of the real dispute for years, sometimes for over a decade. Industrial peace, one presumes, hangs in the balance in the meanwhile. We have now before us a case where a dispute originating in 1969 and referred for adjudication by the Government to the Labour Court in 1970 is still at the stage of decision on a preliminary objection. There was a time when it was thought prudent and wise policy to decide preliminary issues first. But the time appears to have arrived for a reversal of that policy. We think it is better that tribunals, particularly

those entrusted with the task of adjudicating labour disputes where delay may lead to misery and jeopardise industrial peace, should decide all issues in dispute at the same time without trying some of them as preliminary issues. Nor should High Courts in the exercise of their jurisdiction under Article 226 of the Constitution stop proceedings before a tribunal so that a preliminary issue may be decided by them. Neither the jurisdiction of the High Court under Article 226 of the Constitution nor the jurisdiction of this Court under Article 136 may be allowed to be exploited by those who can well afford to wait to the detriment of those who can ill afford to wait by dragging the latter from court to court for adjudication of peripheral issues, avoiding decision on issues more vital to them. Article 226 and Article 136 are not meant to be used to break the resistance of workmen in this fashion. Tribunals and (1983) 4 SCC 293 courts who are requested to decide preliminary questions must therefore ask themselves whether such threshold part-

adjudication is really necessary and whether it will not lead to other woeful consequences. After all tribunals like Industrial Tribunals are constituted to decide expeditiously special kinds of disputes and their jurisdiction to so decide is not to be stifled by all manner of preliminary objections and journeyings up and down. It is also worthwhile remembering that the nature of the jurisdiction under Article 226 is supervisory and not appellate while that under Article 136 is primarily supervisory but the court may exercise all necessary appellate powers to do substantial justice. In the exercise of such jurisdiction neither the High Court nor this Court is required to be too astute to interfere with the exercise of jurisdiction by special tribunals at interlocutory stages and on preliminary issues.

2. Having sermonised this much, we may now proceed to state the facts which provoked the sermon. The appellant D.P. Maheshwari was an employee of Toshniwal Brothers Pvt. Ltd., when his services were terminated with effect from July 28, 1969. He raised an industrial dispute and on July 3, 1970 the Lt. Governor of Delhi referred the dispute for adjudication to the Additional Labour Court, Delhi under Sections 10(1)(c) and 12(5) of the Industrial Disputes Act. The dispute referred for adjudication to the Labour Court was:

"Whether the termination of services of Shri D.P. Maheshwari is illegal and/or unjustified and if so to what relief is he entitled and what directions are necessary in this respect." The management straightaway questioned the reference by filing Writ Petition No. 159 of 1972 in the Delhi High Court. The writ petition was dismissed on May 22, 1972. Thereafter the management raised a preliminary contention before the Labour Court that D.P. Maheshwari was not a 'workman' within the meaning of Section 2(s) of the Industrial Disputes Act and the reference was therefore incompetent. The Labour Court tried the question whether D.P. Maheshwari was a workman as defined in Section 2(s) of the Industrial Disputes Act as a preliminary issue. Both parties adduced oral and documentary evidence. After referring to the evidence of the employee's witnesses the Labour Court said: "Thus according to the evidence of the claimant's witnesses the claimant was employed mainly for clerical duties and he did discharge the same." The Labour Court then referred to the

evidence of the witnesses examined by the management and said: "Thus the said evidence falls far short of proving that the claimant was in fact discharging mainly administrative or supervisory duties."

The Labour Court then proceeded to refer to the documents produced by the management and observed:

"Thus the documents filed by the respondent do not go to show that the real nature of the duties discharged by the claimant was supervisory or administrative in nature."

The Labour Court next referred to what it considered to be an admission on the part of the management who had classified all their employees into three separate Classes A, B and C, Class A described as 'Managerial', Class B described as 'Supervisory' and Class C described as 'Other Staff'. The name of D.P. Maheshwari was shown in Class C. After reviewing the entire evidence the Labour Court finally recorded the following finding:

"From the above discussion, it is clear that the claimant's evidence shows that he was doing mainly clerical work of maintaining certain registers preparing drafts and seeking instructions from the superiors and respondents' lawyers during the period of his services though designated Accounts Officer or officer on special duty or store purchase officer....

As a result, in my opinion it has to be held that the nature of the main duties being discharged by the claimant was clerical and not supervisory or administrative despite his designation as officer. Accordingly, he has to be held to be a workman under Section 2(s) of the Industrial Disputes Act."

(Emphasis supplied) The Apex Court, later, in NATIONAL COUNCIL FOR CEMENT & BUILDING MATERIALS v. STATE OF HARYANA⁴ has while reiterating D P MAHESHWARI supra has held as follows:

"

11. Usually, whenever a reference comes up before the Industrial Tribunal, the establishment, in order to delay the proceedings, raises the dispute whether it is an 'industry' as defined in Section 2(j); or whether the dispute referred to it for adjudication is an "industrial dispute" within the scope of Section 2(k) and also whether the employees are 'workmen' within the meaning of Section 2(s). A request is made with that these questions may be determined as preliminary issues so that if the decision on these questions are in the affirmative, the Tribunal may proceed to deal with the real dispute on merits.

12. We, however, cannot shut our eyes to the appalling situation created by such preliminary issues which take long years to settle as the decision of the Tribunal on

the preliminary issue is immediately challenged in one or the other forum including the High Court and proceedings in the reference are stayed which continue to lie dormant till the matter relating to the preliminary issue is finally disposed of.

13. This Court in *Cooper Engineering Ltd. v. P.P. Mundhe* [(1975) 2 SCC 661 : 1975 SCC (L&S) 443 :

(1975) 2 LLJ 379 : (1976) 1 SCR 361] in order to obviate undue delay in the adjudication of the real dispute, observed that the Industrial Tribunals should decide the preliminary issues as also the main issues on merits altogether so that there may not be any further litigation at the interlocutory stage. It was further observed that there was no justification for a party to the proceedings to stall the final adjudication of the dispute referred to (1996) 3 SCC 206 the Tribunal by questioning the decision of the Tribunal on the preliminary issue before the High Court.

14. Again in *S.K. Verma v. Mahesh Chandra* [(1983) 4 SCC 214 : 1983 SCC (L&S) 510 : 1983 Lab IC 1483 :

(1983) 3 SCR 799] this Court strongly disapproved the practice of raising frivolous preliminary objections at the instance of the employer to delay and defeat the purpose of adjudication on merits.

15. In *D.P. Maheshwari v. Delhi Admn.* [(1983) 4 SCC 293 : 1983 SCC (L&S) 527 : 1983 Lab IC 1629 :

(1983) 3 SCR 949] this Court speaking through O. Chinnappa Reddy, J. observed that the policy to decide the preliminary issue required a reversal in view of the "unhealthy and injudicious practices resorted to for unduly delaying the adjudication of industrial disputes for the resolution of which an informal forum and simple procedure were devised with avowed object of keeping them from the dilatory practices of civil courts". The Court observed that all issues whether preliminary or otherwise, should be decided together so as to rule out the possibility of any litigation at the interlocutory stage.

To the same effect is the decision in *Workmen v. Hindustan Lever Ltd.* [(1984) 4 SCC 392 : 1985 SCC (L&S) 6 : 1984 Lab IC 1573 : (1985) 1 SCR 641]

16. The facts in the instant case indicate that the appellant adopted the old tactics of raising a preliminary dispute so as to prolong the adjudication of industrial dispute on merits. It raised the question whether its activities constituted an 'Industry' within the meaning of the Industrial Disputes Act and succeeded in getting a preliminary issue framed on that question. The Tribunal was wiser. It first passed an order that it would be heard as a preliminary issue, but subsequently, by change of mind, and we think rightly, it decided to hear the issue along with other issues on merits at a later stage of the proceedings. It was at this stage that the High Court was approached by the appellant with the grievance that the Industrial Tribunal, having once decided to hear the matter as

a preliminary issue, could not change its mind and decide to hear that issue along with other issues on merits. The High Court rightly refused to intervene in the proceedings pending before the Industrial Tribunal at an interlocutory stage and dismissed the petition filed under Article 226 of the Constitution. The decision of the High Court is fully in consonance with the law laid down by this Court in its various decisions referred to above and we do not see any occasion to interfere with the order passed by the High Court. The appeal is dismissed, but without any order as to costs."

(Emphasis supplied) The Apex Court, in the afore-quoted judgments, sounded a clear note of warning against the tendency to raise preliminary objections and carry interlocutory orders to higher forums, thereby converting industrial adjudication into an interminable contest. The Apex Court underscored that industrial disputes must be decided expeditiously and that the parties ought not be permitted to obstruct proceedings by repeated interruptions at intermediate stages. The Apex Court was considering orders on preliminary issue being brought before the Constitutional Courts by the employers.

15. In the present case, the respondents are workmen who have suffered dismissal and are pursuing statutory remedies. Their sustenance and dignity are intertwined with the expeditious adjudication of their claims. It would, therefore, be wholly inappropriate to permit the petitions to prolong the proceedings on an unsustainable preliminary contention. The writ jurisdiction of this Court, albeit, wide is not designed to be invoked for every procedural skirmish, particularly in matters where the statutory forum is seized of the dispute and is competent to carry the proceedings to their logical conclusion.

16. In view of the settled legal position that Section 10 is inapplicable to the proceedings under the Act and further considering the impugned order is interlocutory in nature, it does not warrant interference under writ jurisdiction. These petitions merit rejection and accordingly, they stand rejected.

17. Considering the nature of dispute and the hardship of the workmen facing loss of livelihood, the Labour Court is directed to endeavour to decide the pending reference, along with the disputes within an outer limit of 6 months from the date of receipt of the copy of this order in accordance with law, so that industrial justice is not rendered illusory by delay.

SD/-

(M.NAGAPRASANNA) JUDGE Bkp CT:SS